

1 ENGROSSED HOUSE
2 BILL NO. 3297

By: Hays of the House

3 and

4 Woods of the Senate
5

6 An Act relating to highway remediation services;
7 requiring highway remediation and cleanup services
8 maintain certain minimum liability insurance
9 coverage; requiring coverage for licensure;
10 authorizing certain suspension or revocation of
11 license; requiring certain price list be published on
12 website; requiring annual update of price list;
13 listing requirements of price list; providing for
14 codification; and providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 2-7-407 of Title 27A, unless
18 there is created a duplication in numbering, reads as follows:

19 Every highway remediation and cleanup service operating within
20 this state shall maintain commercial general liability insurance
21 coverage of not less than Three Million Dollars (\$3,000,000.00),
22 that includes completed operations and pollution liability coverage.
23 Proof of such coverage shall be provided upon licensure by the
24 Department of Environmental Quality and upon request to law
enforcement, the Department of Transportation, insurers, or
contracting parties. The Department of Environmental Quality may

1 suspend or revoke the license of a highway remediation and cleanup
2 service for failure to maintain the coverage required pursuant to
3 this section.

4 SECTION 2. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 2-7-408 of Title 27A, unless
6 there is created a duplication in numbering, reads as follows:

7 Each highway remediation and cleanup service operating in this
8 state shall publish and maintain on a publicly accessible website a
9 clear, searchable price list of its top fifty (50) most frequently
10 billed nonconsent highway remediation services. The price list
11 shall be updated at least annually and made available prior to or
12 contemporaneously with billing. The price list shall include, at a
13 minimum:

- 14 1. A plain-language description of each service;
- 15 2. The standard charge for each service, including, but not
16 limited to, hourly rates, common equipment charges, and emergency
17 surcharges;
- 18 3. Units of measurement or billing increments; and
- 19 4. Any commonly applied surcharges.

20 SECTION 3. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 9th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate